



CHAPTER ccxi.

An Act to authorise the Corporation of Manchester to
construct tramways and street widenings within and
beyond the city to confer further powers upon the
Corporation and neighbouring authorities with respect
to the exercise of powers relating to tramways works
and electricity within and beyond the city and for other
purposes. A.D. 1904.
[15th August 1904.]

WHEREAS the lord mayor aldermen and citizens of the city
of Manchester (in this Act called "the Corporation") are
the owners of tramways within the city of Manchester and lessees
of tramways beyond the city and they are empowered to work
the same :

And whereas by the Manchester Southern Tramways Act 1903
the Manchester Southern Tramways Company were authorised to
construct certain tramways in the neighbourhood of the city with
power for the local authorities therein mentioned or the Corpo-
ration to construct the same subject in the event of the local
authorities exercising the power to their granting a lease of the
tramways to the Corporation :

And whereas it is expedient to empower the Corporation to
construct and work the additional tramways within and beyond the
city by this Act authorised subject to the powers and provisions
of this Act in favour of local authorities :

And whereas it is expedient that the Corporation should be
empowered to make and maintain the street widenings and other
works and to acquire the lands within and beyond the city in this
Act respectively mentioned or referred to subject to the powers
and provisions of this Act in favour of local authorities :

A.D. 1904.

And whereas a Bill has been introduced into Parliament the short title of which is the Manchester Corporation (General Powers) Act 1904 whereby it is proposed amongst other things to alter and extend the boundaries of the city of Manchester so as to include within the city certain adjoining districts including the urban district of Withington and it is expedient in the event of the said Bill passing into law and providing for the annexation of the urban district of Withington that the Corporation should be empowered to execute the street works in that district as by this Act provided :

And whereas the Corporation have constructed works for supplying and are supplying electrical energy within the city and neighbourhood and it is expedient that the Corporation should be authorised to lay down the electricity mains mentioned or referred to in this Act and that further powers should be conferred upon the Corporation in relation to such supply and also in reference to their electricity undertaking as by this Act provided :

And whereas it is expedient to make such other provision as this Act contains :

And whereas the purposes aforesaid cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purchase of land for and the execution of the various works by this Act authorised and such estimates are as follows :—

	£
For and in connexion with the construction of tramways and street works within the city -	32531
For and in connexion with the construction of tramways within the urban district of Sale -	6996
For and in connexion with the construction of street works in the last-mentioned district -	3500
For and in connexion with the construction of tramways within the township of Dunham-Massey - - - - -	1495
For and in connexion with the construction of street works within the urban district of Withington - - - - -	85000

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

[4 EDW. 7.] *Manchester Corporation Tramways* [Ch. ccxi.]
 Act, 1904.

And whereas an absolute majority of the whole number of the council at a meeting held on the eleventh day of November one thousand nine hundred and three after ten clear days notice by public advertisement of such meeting and of the purpose thereof in the Daily Dispatch a local newspaper published and circulating in the city such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the city rate : A.D. 1904.

And whereas such resolution was published twice in the said Daily Dispatch and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the twenty-seventh day of January one thousand nine hundred and four being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Lancaster and with the clerk of the peace for the county of Chester and are in this Act respectively referred to as the deposited plans sections and books of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited for all purposes as the Manchester Short title.
Corporation Tramways Act 1904.

2. The following Acts and parts of Acts so far as they are applicable for the purposes and are not inconsistent with the Incorporation of Acts.

A.D. 1904. — provisions of this Act are hereby incorporated with and form part of this Act namely :—

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

Section 19 (Local authority may lease or take tolls) and Parts II and III of the Tramways Act 1870 Provided that section 19 shall in regard to its incorporation with this Act be read and have effect as if the words “but nothing in this Act contained shall authorise any local authority to place or run carriages upon such tramways and to demand and take tolls and charges in respect of the use of such carriages” were omitted from that section:

Provided also that the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any alteration of or interference with any telegraphic line belonging to or used by the Postmaster-General The expression “telegraphic line” in this Act has the same meaning as in the Telegraph Act 1878.

Interpreta-
tion.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant thereto And in this Act unless the subject or context otherwise requires—

“The Corporation” means the lord mayor aldermen and citizens of the city of Manchester;

“The city” means the city of Manchester;

“The council” means the council of the city;

“The town clerk” means the town clerk of the city;

“The city fund” and “the city rate” mean respectively the city fund and city rate of the city;

“Mechanical power” includes steam electric and every other motive power not being animal power;

“Engine” includes motor;

“The Stretford District Council” means the urban district council of Stretford;

“The Sale District Council” means the urban district council of Sale;

“The Withington District Council” means the urban district council of Withington;

[4 EDW. 7.] *Manchester Corporation Tramways* [Ch. ccxi.]
Act, 1904.

“The Bucklow District Council” means the rural district council of Bucklow; A.D. 1904

“The Act of 1897” “the Act of 1899” “the Act of 1900” “the Act of 1901” “the Act of 1902” and “the Act of 1903” mean respectively the Manchester Corporation Act 1897 the Manchester Corporation Tramways Act 1899 the Manchester Corporation Tramways Act 1900 the Manchester Corporation Act 1901 the Manchester Corporation Tramways Act 1902 and the Manchester Corporation Act 1903;

“Street” includes any highway public bridge road lane foot-way square court alley or passage whether a thoroughfare or not;

“Owner” (except where otherwise in this Act defined) shall have the same meaning as that assigned to it by section 36 of the Manchester Corporation Act 1891.

In regard to the provisions of the Tramways Act 1870 incorporated or referred to in this Act and for the purposes of this Act the expression “local authority” includes the Bucklow District Council and “local rate” means in respect of that council the rate out of which the special expenses of the township of Dunham-Massey are under the Public Health Act 1875 payable.

4. Subject to the provisions and for the purposes of this Act (including the providing of space for the erection of buildings adjoining or near to any street) the Corporation may enter on take appropriate and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference: Power to acquire lands.

Provided that the Corporation shall not enter upon or take the lands or any part thereof numbered respectively 41 103 155 156 157 158 159 160 and 161 on the deposited plans in the urban district of Withington:

Provided further that as regards the lands numbered 96 97 98 99 100 101 and 102 on the deposited plans in the urban district of Withington no more thereof shall be taken than is requisite to make Palatine Road of the clear width of 48 feet co-extensive with such last-mentioned lands.

5. The Corporation in addition to any other lands which they are by this Act authorised to acquire may by agreement purchase take on lease acquire and hold for the purposes of this Act any lands not exceeding in the whole five acres Provided Power to purchase additional lands by agreement.

A.D. 1904. — that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands.

Correction of errors &c. in deposited plans and book of reference.

6. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county in which the lands are situate for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county in which the lands are situate and a duplicate thereof shall also be deposited with the town clerk and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same relate and thereupon the deposited plans or book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Plans &c. be open to inspection.

7. A copy of the deposited plans sections and book of reference respectively shall be kept by the town clerk who shall permit any person to inspect the same at reasonable times and to make copies of and extracts from the same respectively on payment by any such person of one shilling for every inspection and of the further sum of one shilling for every hour during which such inspection shall continue after the first hour and after the rate of sixpence for every one hundred words copied therefrom.

Certified copies of plans &c. to be evidence.

8. Copies of the deposited plans sections and book of reference or of any alteration or correction thereof or extract therefrom certified to be correct by the clerk of the peace of the county in which the lands are situate or by the town clerk (which certificate such clerk of the peace and town clerk respectively shall give to all parties interested when required) shall be received in all courts of justice or elsewhere as *prima facie* evidence of the contents thereof.

Limiting time for compulsory purchase of lands.

9. The powers of the Corporation for the compulsory purchase of lands under this Act shall cease after the expiration of three years from the passing of this Act.

10. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

A.D. 1901.
Power to persons under disability to grant easements &c.

11. Subject to the provisions of this Act section 26 (Owners may be required to sell parts only of certain lands and buildings) of the Act of 1903 shall so far as the same is not inconsistent with the provisions of this Act extend with the necessary modifications to and in relation to the lands authorised to be taken under this Act and mentioned in the First Schedule to this Act.

Incorporation of enactment as to taking part only of certain properties.

12. Subject to the provisions of this Act the Corporation may if they think fit lay down use and maintain in the lines and situations and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections the tramways herein-after described with all necessary and proper rails plates sleepers channels passages and tubes for ropes cables wires and electric lines junctions turntables turnouts crossings passing-places stables carriage-houses engine and boiler houses sheds buildings engines dynamos works and conveniences connected therewith respectively.

Power to make tramways.

The tramways herein-before referred to and authorised by this Act are as follows :—

IN THE CITY.

Tramway No. 1 (double line 1 furlong and 4·26 chains in length) commencing in Piccadilly by a junction with the existing tramway thence proceeding in a south-westerly direction into and along George Street and Parker Street to and terminating in Portland Street by a junction with the existing tramway :

Tramway No. 1A (single line 1·80 chains in length) commencing in George Street by a junction with Tramway No. 1 thence proceeding in a north-westerly direction to

A.D. 1904.

and terminating in Mosley Street by a junction with the existing tramway :

Tramway No. 1b (double line 1·17 chains in length) commencing in Parker Street by a junction with Tramway No. 1 thence proceeding in a southerly direction to and terminating in Portland Street by a junction with the existing tramway :

Tramway No. 1c (single line 7·13 chains in length) commencing in George Street by a junction with Tramway No. 1 thence proceeding in a southerly direction along the before-mentioned street to and terminating in Parker Street by a junction with Tramway No. 1 :

Tramway No. 2 (3 furlongs and 3·63 chains in length whereof 8·67 chains will be double line and 2 furlongs and 4·96 chains will be single line) commencing in Great Ancoats Street by a junction with the existing tramway thence proceeding in a south-easterly direction into and along Mill Street to and terminating in Bradford Road by a junction with the existing tramway :

Tramway No. 2A (single line 0·94 chain in length) commencing in Mill Street by a junction with Tramway No. 2 thence proceeding in an easterly direction to and terminating in Beswick Street by a junction with the existing tramway :

Tramway No. 3 (double line 1 furlong and 0·14 chain in length) commencing in Bradford Road by a junction with the existing tramway thence proceeding in a north-easterly direction along the diversion of Bradford Road to and terminating in Hulme Hall Lane by a junction with Tramway No. 23 authorised by the Act of 1900 :

Tramway No. 3A (double line 2·15 chains in length) commencing in the Bradford Road diversion by a junction with Tramway No. 3 thence proceeding in an easterly direction to and terminating in Hulme Hall Lane by a junction with the before-mentioned authorised Tramway No. 23 :

Tramway No. 4 (double line 1 mile 4 furlongs and 6·47 chains in length) commencing in Rochdale Road by a junction with the existing tramway thence proceeding in a north-westerly direction along Victoria Avenue and the proposed extension thereof to and terminating in Middleton Road by a junction with the existing tramway :

Tramway No. 4A (double line 1·60 chains in length) commencing in Rochdale Road by a junction with the existing tramway thence proceeding in a south-westerly direction to and terminating in Victoria Avenue by a junction with Tramway No. 4: A.D. 1904.
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Tramway No. 4B (double line 2·05 chains in length) commencing in the proposed extension of Victoria Avenue by a junction with Tramway No. 4 thence proceeding in a north-westerly direction to and terminating in Middleton Road:

Tramway No. 4C (double line 0·93 chain in length) commencing in Middleton Road by a junction with the existing tramway thence proceeding in a south-westerly direction to and terminating at the boundary wall of Heaton Park:

Tramway No. 4D (double line 0·81 chain in length) commencing in Middleton Road by a junction with the existing tramway thence proceeding in a north-westerly direction to and terminating at the boundary wall of Heaton Park:

Tramway No. 4E (double line 1·18 chains in length) commencing in Victoria Avenue by a junction with Tramway No. 4 thence proceeding in a westerly direction and terminating at the boundary wall of Heaton Park on the west side of Middleton Road:

Tramway No. 5 (double line 0·67 chain in length) commencing in Middleton Road by a junction with the existing tramway thence proceeding in a north-westerly direction to and terminating at the boundary of Heaton Park:

Tramway No. 5A (double line 0·73 chain in length) commencing in Middleton Road by a junction with the existing tramway thence proceeding in a south-westerly direction to and terminating at the boundary of Heaton Park.

IN THE URBAN DISTRICT OF SALE.

Tramway No. 6 (2 furlongs and 0·06 chain in length whereof 1 furlong and 7·84 chains will be double line and 2·22 chains will be single line) commencing in Cross Street by a junction with the tramway in that street authorised by the Manchester Southern Tramways Act 1903 and passing thence along Ashfield Road into and along Tatton Road to and terminating in School Road by a junction with the tramway in that road authorised by the said Act of 1903.

A.D. 1904. IN THE TOWNSHIP OF DUNHAM-MASSEY (BUCKLOW RURAL DISTRICT).

Tramway No. 7 (single line 1 furlong and 8·38 chains in length) commencing in Manchester Road at the termination of and by a junction with Tramway No. 3 authorised by the Manchester Southern Tramways Act 1903 passing thence along Manchester Road to and terminating at the boundary of the urban district of Altrincham at Sinderland Road.

Certain tramways not to be laid until streets widened.

13. The tramways mentioned in the first column of the following table shall not be constructed unless and until the carriageway of the streets mentioned in the second column thereof is so widened that a space of not less than nine feet six inches shall intervene between the outside of the footway on either side of the road and the nearest rail of the tramway. Provided that no footway be reduced to a less width than six feet.

Number of Tramway.						Street.
1	1A	1B	and	1C	-	George Street and Parker Street (City)
2	-	-	-	-	-	Mill Street (City)
2A	-	-	-	-	-	Mill Street (City)
7	-	-	-	-	-	Manchester Road (Dunham-Massey)

Gauge.

14. The tramways authorised by this Act shall be of the gauge of four feet eight-and-a-half inches.

Time for completion of tramways.

15. If the tramways by this Act authorised be not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Corporation for constructing the same or otherwise in relation thereto shall cease except as to so much of the tramways respectively as is then completed.

Removal of obstruction in Wilbraham Road.

16. The Corporation may remove the existing obstructions in and gate across or dividing Wilbraham Road in the urban district of Withington so as to allow the tramway authorised to be constructed and worked and to afford free passage for tramway cars to run into through and out of such road between Alexandra Road South and Barlow Moor Road.

For protection of Stretford Gas Company.

17. The following provisions for the protection of the Stretford Gas Company (herein-after called "the gas company") shall apply and have effect:—

(1) During the construction of the tramways the Corporation may deviate in such places to such extent and in such

manner as the engineer for the time being of the gas company may certify in writing to be necessary for avoiding interference with any main pipe or apparatus belonging to the gas company but no such deviation shall be so made as to leave a less space than 9 feet 6 inches between the nearest rail of the tramway to be deviated and the outside of the footpath: A.D. 1904.

- (2) Sections 30 32 and 33 of the Tramways Act 1870 shall *mutatis mutandis* be incorporated in this section and shall apply to the gas company with reference to the gas mains pipes and apparatus belonging to them in like manner as the same apply to a company or person being the owner of gas mains or pipes. Provided that all works or interference with any main pipe or apparatus of the gas company under section 30 of the Tramways Act 1870 or otherwise shall be made and executed by the gas company and not otherwise upon the request and at the cost of the Corporation:
- (3) The cost of constructing providing and laying any new main pipe or apparatus in substitution for any which may be rendered useless by the construction of any of the tramways and the value of any main pipe or apparatus belonging to the gas company rendered useless or unproductive to the gas company by any of the works authorised by this Act shall on demand and subject to credit being given for the value of the afore-said matters so rendered useless to the gas company be repaid to the gas company by the Corporation. Provided always that whenever any new main or pipe of larger dimensions shall be substituted for any existing main or pipe the Corporation shall only be required to pay the cost which would have been incurred by the substitution of a main or pipe of equal dimensions with the existing main or pipe:
- (4) If by reason or in consequence of any authorised deviation it shall become necessary to lower or raise any main pipe or apparatus of the gas company such lowering or raising shall be carried out by the gas company at the expense of the Corporation. The question whether any such main pipe or apparatus requires to be lowered or raised shall be decided by the engineer of the gas company:

A.D. 1904.

- (5) Where the distance from the upper side of any main or pipe belonging to the gas company to the lowest part of the rail of the tramway is less than two feet such main or pipe shall be lowered by the gas company at the expense of the Corporation so as to leave a distance of not less than two feet between the upper side of such pipe and the lowest part of such rail:
- (6) At any point or points where the tramways or any of them cross a main or pipe belonging to the gas company the Corporation shall at their own expense and to the reasonable satisfaction of the engineer for the time being of the gas company lay and thereafter keep and maintain to the like satisfaction underneath each rail and immediately over such main or pipe a bed of asphalt or other insulating material to be approved by the said engineer of not less than two feet wide by six inches thick and of a length extending two feet beyond such main or pipe on each side thereof:
- (7) If by reason or in consequence of any works of street widening carried out upon the lands by this Act authorised to be acquired compulsorily or by reason or in consequence of the reduction of the width of any footpath any main pipe or apparatus belonging to the gas company and now laid underneath any existing footpath shall be brought underneath the roadway the gas company shall at the expense of the Corporation move such main pipe or apparatus so as to place the same under the new footpath or into some other position approved by the engineer of the gas company:
- (8) The gas company shall not be liable for and the Corporation shall indemnify the gas company against all loss to the Corporation by reason of suspension of traffic and all accidents damages or injuries to the tramways works and property of the Corporation and the persons and property being conveyed on or using the same and all actions suits and costs in respect thereof which may either during the progress of the works of the Corporation or at any time hereafter be caused by the bursting breakage or leakage of or escape of gas from any main or pipe of the gas company crossing or being underneath (either wholly or partially) or near to any

tramway or work of the Corporation or which may have been affected by the works of the Corporation unless such damage or injury shall have arisen as the consequence of any wilful act or default of the gas company or their officers or servants : A.D. 1904.
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- (9) The gas company shall not be responsible to the Corporation for any damage the Corporation may sustain by reason of the Corporation having to repair or relay their lines from time to time in consequence of the road subsiding after the construction relaying enlarging examining or repairing of any gas main pipe or apparatus has been completed and the ground above the same filled in provided such work shall have been executed with all care and in a proper and workmanlike manner :
- (10) The Corporation shall so construct and isolate and thereafter maintain their pipes conduits boxes and other apparatus as to render the same impervious to the access of gas and the gas company shall not be responsible for and the Corporation shall indemnify the gas company against any damage to property or person resulting from the leakage of gas from the mains or pipes of the gas company into the pipes conduits boxes or other apparatus of the Corporation if it shall be proved to the satisfaction of an arbitrator to be appointed as herein-after mentioned that such leakage into the pipes conduits boxes or other apparatus of the Corporation was attributable to the same not having been so constructed and isolated as to be impervious to the access of gas And the Corporation shall make good at their own cost any damage to their own and surrounding property that may be caused by any explosion of gas collected in any of their conduits pipes boxes or other apparatus :
- (11) Any difference which may arise between the gas company and the Corporation with reference to this section or anything to be done or not to be done thereunder shall (unless otherwise agreed or otherwise expressly provided by this section) be determined by an arbitrator to be appointed in default of agreement by the Board of Trade :

A.D. 1904.

- (12) The gas company and the Corporation may by agreement under seal alter or modify any of the provisions of this section.

For protec-
tion of North
Cheshire
Water Com-
pany.

18. Notwithstanding anything contained in this Act the following provisions for the protection and benefit of the North Cheshire Water Company (in this section referred to as "the water company") shall except so far as may be otherwise agreed between the Corporation and the water company apply and have effect:—

- (1) During the construction of the tramways the Corporation shall deviate in such places to such extent and in such manner as the engineer of the water company may certify in writing to be necessary for avoiding interference with any mains pipes or apparatus (all of which are in this section included in the expression "mains") belonging to the water company:
- (2) Whenever in the execution of the powers contained in this Act or in section 30 of the Tramways Act 1870 it shall be necessary to lower alter interfere with or disturb any mains belonging to the water company such lowering alteration interference or disturbance shall be effected by and under the direction of the water company and where the main to be lowered altered interfered with or disturbed is constructed on in or over a bridge the water company may if they think fit reconstruct the same on a pipe bridge and for that purpose may acquire all necessary rights easements and conveniences for and in respect of the construction repair and renewal of such pipe bridge and of such main and for obtaining access thereto and all expenses incurred by the water company in pursuance of this subsection shall be repaid to them by the Corporation:
- (3) The cost of constructing providing and laying any new mains in substitution for any which may be rendered useless by the construction or user of the tramways and the value of any mains belonging to or under the control of the water company rendered useless or unproductive to them by the works authorised by this Act shall be paid by the Corporation to the water company:

(4) When under the foregoing provisions of this section new mains shall be laid down in the place of existing mains the water company may use mains of dimensions larger than those of the existing mains but the Corporation shall (unless the increased dimensions are rendered necessary by reason of the construction or use of the tramways) only be required to pay the expenses which would have been incurred by the substitution of mains of dimensions equal to those of the existing mains:

A.D. 1904.
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(5) The water company shall not be liable for and the Corporation shall indemnify the water company against all loss to the Corporation by reason of suspension of traffic and all accidents damages or injuries to the tramways works and property of the Corporation and to the persons and property conveyed on or using the same which may either by the construction of the works of the Corporation or at any time thereafter in consequence thereof be caused by the bursting breaking or leakage of or escape of water from any main of the water company crossing or being underneath (either wholly or partially) or near to any tramway or work of the Corporation or which may have been affected by the works of the Corporation unless such damage or injury shall have arisen as the consequence of any act or default of the water company their officers or servants Provided always that the water company shall at the cost of the Corporation and without unnecessary delay execute and do all things necessary to make good any such bursting breaking leakage or escape:

(6) In the event of any difference arising between the Corporation and the water company on any matters in this section the same shall be determined by arbitration the arbitrator being appointed in default of agreement on the application of either party by the Board of Trade.

19. The following provisions for the protection of the county council of the administrative county of Chester (in this section called "the county council") and the inhabitants of the said county shall notwithstanding anything in this Act contained and

For protection of
Cheshire
County
Council.

A.D. 1904 — unless otherwise agreed in writing between the county council and the Corporation apply and have effect:—

- (1) (A) Before the Tramway No. 7 (in this section called "the tramway") by this Act authorised to be laid in or along the Manchester main road in the township of Dunham-Massey within the said administrative county which expression in this section includes the carriageway and footway of any bridge forming part of or leading to that road is opened for public traffic the Corporation shall at their own expense widen such road to a width of $16\frac{1}{2}$ feet by reducing (but so far only as is necessary for that purpose) the width of the footway and the tramway shall be laid and maintained in such position as to allow a space of 9 feet 6 inches and no more between the outer edge of the kerb and the centre of the nearest rail and no part of the tramway shall be laid until the carriageway of the said road has been widened to a width of thirty-three feet throughout the entire length of the tramway;
- (B) The Corporation shall at their own expense pave or metal as the case may be the widened portion of the carriageway and footpath (if any) with the same class of pavement or metalling as existed before the widening was made:
- (2) A double line of rails shall not be laid where a single line is shown on the deposited plans without the written consent of the county council:
- (3) The Corporation shall at their own expense and to the satisfaction of the county council pave so much of the main road whereon the tramway is laid as lies between the rails of the tramway and as lies between the boundary of the district and the nearest rail of the tramway and as extends eighteen inches beyond the rails on the side of the tramway nearest the kerb on the westerly side of the road with granite cubes or setts or such other paving as the county council may reasonably approve and the Corporation shall so long as they shall work the tramway keep and maintain the same respectively in good repair and condition and all works and materials used in the construction maintenance or alteration of the said road lying

adjacent to the tramway shall be reasonably approved by the county council and in the event of any subsequent deviation or alteration of the tramway the consent of the county council shall be obtained before such deviation or alteration is made: A.D. 1904.

- (4) The Corporation may make any alteration in the levels of the main road aforesaid with the consent of the county council which consent shall not be unreasonably withheld and any such alteration to which the county council shall consent together with any such other alteration which the county council shall consider necessary in restoring and re-forming the carriageway or footways to meet the altered levels and conditions consequent upon the construction of the tramway shall be carried out in such manner as the county council may approve by and at the expense of the Corporation:
- (5) Before the Corporation lay the tramway upon along or across any county or hundred bridge or the approaches thereto repairable by the county council they shall at their own expense and in accordance with plans sections and specifications to be first approved by the county surveyor and to his satisfaction widen the portions of such bridge and its approaches which are situate in the aforesaid township of Dunham-Massey so as to secure a carriageway of the same width as that provided by subsection (1) of this section as regards the roadway in which the tramway shall be laid:
- (6) In constructing the tramway upon or over any such bridge or the approaches thereto the Corporation shall not except so far as may be necessary under the last preceding subsection alter or interfere with the structure of such bridge or approaches unless such alteration or interference with the construction of such bridge or approaches be absolutely necessary for the purpose of constructing the tramway and in the event of any such alteration or interference the Corporation shall together with the prescribed notice submit to the county council detailed drawings and specifications showing the proposed work as affecting such bridge and approaches and the Corporation shall so construct and maintain

A.D. 1904.

the tramway in the road over such bridge and forming the approaches thereto as not to injuriously affect such bridge or approaches and in the event of any injury being occasioned to such bridge or approaches or any part or parts thereof respectively by the construction of the tramway on or over the same (whether such injury shall occur during or after construction or in the maintenance of the tramway) the county council after giving seven days written notice to the Corporation except in cases of emergency of their intention so to do may restore such bridge and approaches or the part or parts thereof which may be injured to as good a state as they were in before such injury was occasioned at the expense of the Corporation and the Corporation shall upon demand repay to the county council all reasonable expenses which they may be put to in restoring such bridge and approaches and in maintaining and repairing so much of the road over such bridge and approaches as the Corporation are liable to repair under this Act and the county council may recover from the Corporation all such expenses so due as aforesaid:

- (7) In the event of mechanical power being used on that portion of the tramway which is laid on any such bridge or approaches the county council may execute such works as may be agreed between them and the Corporation (or in case of difference between them as may be determined by the Board of Trade) to be necessary for the strengthening of the fabric of such bridge provided such strengthening is needed for and by reason of the tramway apart from the ordinary traffic on the road in question and the county council may execute all works agreed or determined as aforesaid at the expense of the Corporation and the county council may recover from the Corporation all moneys reasonably expended by them in the execution of such works as aforesaid. If it becomes necessary for effecting such strengthening that the working of any portion of the tramway be wholly or in part stopped or delayed and the county council give the Corporation three clear days notice in writing requiring such stoppage or delay the working of such portion of the tramway shall be

stopped or delayed accordingly but only for so long as may be necessary for effecting such strengthening and the county council shall not be liable for any claims damages or expenses in respect of such stoppage or delay : A.D. 1904.

- (8) Nothing herein contained shall tend to lessen or control any right power or authority now vested in the county council for altering widening or rebuilding any such bridge or approach but all such rights powers and authorities shall remain in as full force as if this Act had not been passed and the county council shall not be liable to make any compensation whatever for any damage or injury to the tramway by the altering widening or rebuilding any such bridge or approach thereto Provided that in altering or rebuilding any such bridge or the approach the county council may require the Corporation to alter the tramway in such manner as the circumstances of the case may reasonably require but nothing shall be done to impede or interfere with the tramway for any greater length of time than may be reasonably necessary for the execution of the works :
- (9) The Corporation shall not execute any work in or affecting or otherwise interfere with the said main road or any such bridge or approach otherwise than subject to such regulations and conditions for the accommodation of traffic and otherwise as the county council may from time to time prescribe :
- (10) The Corporation shall not without the consent in writing of the county council (which consent shall not be unreasonably withheld) place erect or attach any post or other support for any wire on or to the structure of any such bridge as aforesaid and shall on receiving three months notice in writing (which notice shall not be given unreasonably) remove any post or support which shall be so placed erected or attached as aforesaid :
- (11) The Corporation shall on demand pay to the county council the reasonable costs which may be incurred in the repair and reinstatement of so much of the said main road including the roadway over any such bridge

A.D. 1904.

and approach upon or along which the tramways shall be laid as may be injured or damaged by reason of the traffic being concentrated thereon during the construction alteration or repair of the tramway:

- (12) Any paving metalling or other material excavated by the Corporation from the said main road whereon the tramway is laid may subject to the provisions of subsection (3) be applied by the Corporation in or towards the reinstating of such road or the maintenance thereof for six months after the completion of the tramway and the Corporation shall deliver the surplus paving metalling or other material not used for the purpose aforesaid at such place not being more than one mile from the place of excavation as the county council shall appoint:
- (13) For the purposes of this section the expression "the tramway" shall include posts cables and all other electrical appliances connected with or used with the tramway:
- (14) If any question arises under this section between the Corporation and the county council that question shall be referred to arbitration under this Act.

For protection of corporation of Salford.

20. For the protection of the mayor aldermen and burgesses of the county borough of Salford (in this Act referred to as "the Salford Corporation") the following provisions shall apply and have effect:—

- (1) One month before commencing to make under the powers of this Act any junction between any of the tramways by this Act authorised and the existing tramway or any part of the existing tramway in Middleton Road which is leased or agreed to be leased to the Salford Corporation or over which the Salford Corporation are entitled to work or before commencing any work affecting the said existing tramway proper plans and particulars shall be submitted by the Corporation to the Salford Corporation and no work affecting the said existing tramway shall be commenced until such plans and particulars have been agreed between the Corporation and the Salford Corporation or in default of agreement have been settled by an arbitrator to be appointed by the Board of Trade:

- (2) Any such junction and works shall not without the consent of the Salford Corporation be constructed otherwise than in accordance with the plans and particulars so agreed or determined: A.D. 1901.
- (3) All works affecting any part of the said existing tramway shall be executed under the superintendence and to the reasonable satisfaction of the engineer of the Salford Corporation:
- (4) The Corporation shall properly maintain and repair from time to time any junctions to be made under the powers of this Act with the said existing tramway and all the space of roadway situate between the tramways forming such junctions and the existing tramway:
- (5) All reasonable expenses which may be incurred by the Salford Corporation by or in consequence of the works by this Act authorised so far as they affect the said existing tramway including the reasonable charges of the engineer of the Salford Corporation shall be paid by the Corporation:
- (6) The traffic over the tramways by this Act authorised shall be conducted in accordance with regulations to be agreed between the Corporation and the Salford Corporation in such manner as not to interfere with or obstruct the working of the traffic on the said existing tramways by the Salford Corporation and if any difference arise between the Corporation and the Salford Corporation with respect to the making enforcement or observance of such regulations the matter shall be referred to the Board of Trade who shall make such rules and regulations as they may deem fit with respect to the working of the tramways by the Corporation and the Salford Corporation respectively at the said points of junction and crossing.

21. For the protection of the Right Honourable Wilbraham Earl Egerton and the trustees under the will of Wilbraham Egerton Esquire late of Tatton Park in the county of Chester deceased and other the owner or owners for the time being of the estates in the county of Lancaster belonging to him or them (all of whom are included in the expression "the owner" when used in this section) the following provisions notwithstanding anything in this Act

For protection of Earl Egerton and his trustees.

A.D. 1904. — contained shall unless otherwise agreed in writing between the owner and the Corporation be observed and have effect (that is to say) :—

- (1) If the Corporation exercise the powers conferred upon them by the section of this Act whereof the marginal note is "Removal of obstruction in Wilbraham Road" they shall forthwith give the necessary notices and take all necessary steps under and in accordance with the provisions of the Manchester General Improvement Act 1851 and the Acts amending the same to sewer form, pave metal flag channel make good and maintain Wilbraham Road and Alexandra Road for the full width thereof and the footwalks thereof and shall forthwith after the expiration of the time or times limited by such notices as aforesaid and at their own expense sewer form pave metal flag channel make good and maintain Wilbraham Road and Alexandra Road for the full width thereof and the footwalks thereof so far as the same adjoin lands belonging to the owner :

Provided that the Corporation shall give such notices as aforesaid to sewer form pave metal flag channel make good and maintain only such portion of the said Wilbraham Road and Alexandra Road and the footwalks thereof as may be co-extensive with any tramways for the time being laid thereon and they shall not give notice to sewer form pave metal flag channel make good or maintain any portion of either of the said roads except such portions thereof as may be co-extensive with any tramways for the time being laid thereon. On removing the said obstruction and gate the Corporation shall erect the same or an equivalent therefor at such place or places as may be indicated and fixed upon by the owner :

When the Corporation shall have sewered formed paved metalled flagged channelled and made good such portion or portions of the said Wilbraham Road and Alexandra Road in respect of which they may have given any such notices as aforesaid the proportion or proportions of the expenses incurred by them in so doing (according to the frontage or

frontages of premises belonging to the owner) shall only become payable when and to such extent only as the premises affected thereby respectively shall from time to time be sold demised or otherwise disposed of by the owner or his successors in title but on every such sale demise or other disposal the amount proportioned to the frontage of the premises so sold demised or otherwise disposed of shall be forthwith payable without interest thereon until the date of such sale demise or other disposal but with simple interest after the rate of five per cent. per annum from such date and until payment as aforesaid the amount of principal with such interest only as aforesaid so payable in respect of the premises so sold demised or otherwise disposed of shall be a charge upon such premises in accordance with the provisions of the Manchester General Improvement Act 1851 and other Acts amending the same or incorporated therewith and for the purposes of any Statute of Limitations time shall not begin to run in respect of such charge and the premises or any part of the premises belonging to the owner until and only to the extent of any such sale demise or other disposal as aforesaid nor until notice in writing shall have been given by the owner or by the person or persons so acquiring such premises to the Corporation describing by metes bounds and measurements the premises so sold demised or disposed of and for the purposes of this section no yearly or shorter letting nor lease for five years or less unless renewable or unless for building purposes or for occupation in connexion with buildings erected or to be erected on or near the same shall be deemed a demise:

A.D. 1904.
—

Provided further that nothing in this section contained shall prejudice or affect the rights and obligations of the owner or other the owners of premises fronting the said portions of roads or of the Corporation (as successors to the Withington District Council) respectively set forth in section 25 of the Withington Urban District Council Act 1900

A.D. 1904.

and that section shall with the necessary modifications apply and have effect as if re-enacted in this section :

- (2) If the Corporation under the powers of this Act acquire a portion of any lands out of which issue a chief or ground rent or chief or ground rents payable to the owner then the Corporation shall pay to the owner as purchase money for the portion of the chief or ground rent or chief or ground rents issuing out of the land to be purchased by them such a sum of money as will if invested in securities upon which trustees are empowered to invest trust funds produce a yearly income equal to the yearly value of the proportion of such chief or ground rent or such chief or ground rents as shall be payable out of the land so purchased by the Corporation :
- (3) The Corporation shall fence all land to be acquired from the owner from his adjoining lands with upright iron fencing to his reasonable satisfaction and shall build a brick wall six feet high along the whole length of the lands numbered 125 on the deposited plans in the urban district of Withington to protect the remaining lands of the owner :
- (4) Nothing in this section contained shall prejudice abridge or defeat the right of the owner or his tenants to compensation for land (if any) acquired from or injury occasioned to him or them for or in consequence of the works or acts of the Corporation or the exercise of the powers or any of them conferred upon the Corporation by this Act.

For protection of
Cheshire
Lines Committee.

22. For the protection of the Cheshire Lines Committee (in this section called "the committee") the following provisions shall notwithstanding anything contained in this Act apply to and be binding on the Corporation in the exercise of the powers of this Act:—

- (1) The Corporation shall not without the previous consent of the committee under their common seal take use or enter upon any part of the lands belonging to the committee numbered respectively 5 and 9 on the deposited plans in the urban district of Withington :
- (2) All works by this Act authorised where the same will be made upon across under or over any bridge or the

approaches thereto or other work belonging to or maintainable by the committee or will otherwise interfere with the same shall be executed so as not to interfere with the structure of any such bridge approaches or other work and according to plans sections and specifications to be previously submitted to and approved by the committee or in case of difference between them and the Corporation by an arbitrator to be appointed as herein-after provided All such works shall be executed and thereafter maintained by the Corporation according to the plans sections and specifications so approved and under the superintendence and to the satisfaction of the committee The Corporation shall so construct maintain and use the tramways as not to injuriously affect any such bridge or other work and in the event of any injury being occasioned to such bridge or work by the construction maintenance or user of the tramways upon across under or over the same the committee may make good the injury and may recover from the Corporation the reasonable expense of so doing : A.D. 1904.

(3) If by reason of the traffic carried on the tramways or of the character of the motive power used by the Corporation or the weight of the carriages engines or other rolling stock of the Corporation any bridge or other work belonging to or maintainable by the committee and upon which the tramway is laid though otherwise of sufficient strength and having been kept in proper repair is or is in danger of becoming too weak for the traffic upon it and it is therefore reasonably necessary to strengthen the same the committee shall give notice accompanied by sufficient plans and specifications to the Corporation of such works as may be reasonably necessary and may after fourteen days from the date of the notice proceed with all due despatch to execute the same but in all things at the expense of the Corporation and the committee may recover from the Corporation all money reasonably expended by them in the execution of such works as aforesaid :

(4) The Corporation shall on demand pay to the committee the reasonable expense of the employment by the

A.D. 1904.

committee during the execution or repair by the Corporation under this Act of any work affecting any bridge railway siding or other work belonging to the committee of a sufficient number of inspectors watchmen and signalmen to be appointed by the committee for preventing all interference obstruction danger and accident from any of the operations or from the acts or default of the Corporation or their contractors or any person in the employment of either of them or otherwise :

- (5) The Corporation shall not in any manner in the execution maintenance user or repair of any of their works obstruct or interfere with the free uninterrupted and safe user of any railway siding or other work belonging to the committee or any traffic thereon :
- (6) The Corporation shall be responsible for and make good to the committee all losses damages and expenses which may be occasioned to the committee or any of their works or property or to the traffic on their railways or to any company or person using the same or otherwise by or by reason of the execution or failure of any of the intended works or by reason of any act or default or omission of the Corporation or of any person in their employment or of any contractors for the works authorised by this Act or otherwise and the Corporation shall effectually indemnify and hold harmless the committee from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission :
- (7) Whenever the committee shall hereafter require to widen lengthen strengthen reconstruct alter or repair any such bridge or approaches thereto or to widen or alter their railway the Corporation shall afford to the committee all reasonable and proper facilities for those purposes or any of them and if the committee shall find it necessary for any such purposes that the working or user of any portion of the tramway over such bridge or approaches or other work or under such bridge shall be wholly or in part stopped or delayed or that such portion of the tramways by this Act authorised shall be wholly or in part taken up or removed

A.D. 1904.

and the committee shall give to the Corporation seven days notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or removal then the working or user of such portion of the tramways shall be stopped or delayed or such portion of the tramway shall be taken up or removed as stated in such notice at the reasonable expense of the Corporation and under their superintendence if they shall give such superintendence but the working or user of such portion shall not be stopped or delayed for a longer period than may be absolutely necessary for effecting such purposes as aforesaid and such portion of the tramway shall be restored with all possible despatch and the committee shall not be liable for any compensation claims damages or expenses in respect of such stoppage delay or taking up or removal as aforesaid :

- (8) Any additional expense in the maintenance of any such bridge or other work occasioned to the committee by the construction or user of the tramways by this Act authorised shall be borne by the Corporation :
- (9) Whenever any of the tramways by this Act authorised on either side of any of the committee's bridges over or under which the said tramways are laid or intended to be laid is a single line there shall only be a single line over or under such bridge and no turnouts or passing-places shall be constructed thereon or thereunder :
- (10) The Corporation shall not alter the level of the approaches to or roadway under any bridge belonging to or maintainable by the committee or the level of any road so as to affect the access to any premises of the committee without in either case the consent in writing of the committee which consent shall not be unreasonably withheld :
- (11) In the event of the tramways by this Act authorised being worked by electricity on the overhead system no stays posts wires or other apparatus shall without the previous consent in writing of the committee be attached to any bridge house building property or other work belonging to or maintainable by the committee :

A.D. 1904.

- (12) If having regard to the proposed position of any works of the Corporation by this Act authorised when considered in relation to the position of the works of the committee at any point where the tramways by this Act authorised will be constructed over or under any railway of the committee it becomes advisable in order to avoid danger from the breaking or falling of wires that the electric telegraphic telephonic or signal wires or apparatus of the committee shall be altered the committee may execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Corporation:
- (13) The Corporation shall not stop up or permit to be stopped any engine carriage or other vehicle used on the tramways in front of or opposite to the entrance to any station or goods yard belonging to or maintainable by the committee except only for so long as may be reasonably necessary for the purposes of discharging or taking up passengers or in case of emergency or to meet the requirements of the Board of Trade:
- (14) If any difference shall arise between the Corporation and the committee as to the reasonableness of the requirements of the committee or their engineer or as to the execution of any works provided for by this section or as to any other matter arising under this section the same shall be settled by arbitration by an engineer to be appointed by the Corporation and the committee or if they cannot agree then by an engineer to be appointed by the Board of Trade.

For protection of railways and works of Great Central Railway Company.

23. In constructing and maintaining the works by this Act authorised and in exercising any of the powers by this Act conferred affecting any of the railways and canals belonging to or worked by the Great Central Railway Company (hereinafter referred to as "the Central Company") or any of the works thereof respectively or any lands belonging to or used by that company in connexion with such railways and the works thereof the Corporation shall observe perform and be bound by the following provisions stipulations and conditions namely:—

- (1) In this section the word "apparatus" includes posts brackets electric wires conductors apparatus and any similar appliances to be used as or for the purposes

of a motive power for the carriages running on the tramways and includes also any subways tunnels tubes openings excavations channels and pipes for the purposes of such apparatus : A.D. 1904.

- (2) All works by this Act authorised where the same shall be made upon across under or over any bridge or the approaches thereto or other work belonging to or maintainable by the Central Company or will otherwise affect the same shall be executed so as not to interfere with the structure of any such bridge approaches or other work and according to plans sections and specifications to be previously submitted to and approved by the Central Company or in case of difference between them and the Corporation by an arbitrator to be appointed as herein-after provided All such works shall be executed and thereafter maintained according to the plans sections and specifications so approved and under the superintendence and to the satisfaction of the Central Company The Corporation shall so construct maintain and use the tramways as not to injuriously affect any such bridge approaches or other work and in the event of any injury being occasioned to such bridge approaches or work by the construction maintenance or user of the tramways upon across under or over the same the Central Company may make good the injury and may recover from the Corporation the reasonable expenses of so doing :
- (3) If by reason of the construction of the tramway over any such bridge or other work or the user thereof it becomes necessary to strengthen or reconstruct the same the Central Company shall give notice accompanied by sufficient plans and specifications to the Corporation of such works as may be reasonably necessary and may after fourteen days from the date of the notice or forthwith in case of emergency proceed with all due despatch to execute the same but in all things at the expense of the Corporation and the Central Company may recover from the Corporation all moneys reasonably expended by them in the execution of such works as aforesaid :
- (4) The Corporation shall on demand pay to the Central Company the reasonable expense of lighting and watching

A.D. 1904.

the works of the Central Company during the execution or repair by the Corporation under this Act of any work or apparatus affecting any bridge railway or other work belonging to the Central Company for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employ of either of them or otherwise :

- (5) The Corporation shall not in any manner in the execution maintenance user or repair of any of their works obstruct or interfere with the free uninterrupted and safe user of any railway canal or other work belonging to the Central Company or any traffic thereon :
- (6) The Corporation shall be responsible for and make good to the Central Company all losses damages and expenses which may be occasioned to the Central Company or any of their works or property or to the traffic on their railways or canal or to any company or person using the same by or by reason of the execution or failure of any of the intended works or by or by reason of any act default or omission of the Corporation or of any person in their employ or of any contractors for the intended works or any part thereof and the Corporation shall effectually indemnify and hold harmless the Central Company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission :
- (7) If any such bridge approaches or work as aforesaid upon which the tramway is laid be altered widened or rebuilt by the Central Company they may require the Corporation to alter the tramway in such manner as the circumstances of the case may reasonably require and shall at the same time send sufficient plans specifications and other information to show the nature of the alteration required and the Corporation shall forthwith with all reasonable despatch carry into effect such alterations and in default thereof the Central Company may carry out the same at the expense of the Corporation :
- (8) If the Central Company hereafter require to widen lengthen strengthen reconstruct alter or repair any

such bridge upon which the tramway is laid or the approaches thereto or to widen or alter any railway or canal thereunder or to lift or support any such bridge the Corporation shall afford to the Central Company all reasonable and proper facilities for the purpose and if the Central Company find it necessary for such purpose that the working or user of any part of the tramway upon such bridge or approaches be wholly or in part stopped up or delayed or that such part of the tramway be wholly or in part taken up or removed and if the Central Company accordingly give to the Corporation seven days notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or removal then the working or user of such part of the tramway shall be stopped or delayed or such part of the tramway shall be taken up or removed as stated in such notice at the reasonable expense of the Corporation and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purpose as aforesaid and such part of the tramway shall be restored with all possible despatch and in such case the Central Company shall not be liable to pay compensation in respect of such stoppage delay or taking up or removal as aforesaid :

A.D. 1904.

- (9) The Corporation shall from time to time pay to the Central Company any additional expense which the Central Company may incur in effecting such widening lengthening strengthening reconstructing altering repairing lifting or supporting as is mentioned in the last preceding subsection or in the maintenance of any bridge approach or other work of the Central Company by reason of the existence or user of the tramway or any of the works or apparatus connected therewith :
- (10) No apparatus shall be affixed to any bridge or other property of the Central Company without their consent in writing but such consent shall not be unreasonably withheld :
- (11) If having regard to the proposed position of any works of the Corporation by this Act authorised when con-

A.D. 1904.

sidered in relation to the position of the works of the Central Company at any point where the tramway will be constructed over or under the railway canal or other works of the Central Company it becomes advisable in order to avoid danger from the breaking or falling of wires that the electric telegraphic telephonic or signal wires or apparatus of the Central Company shall be altered the Central Company may execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Corporation :

(12) Where any tramway will pass in front of the entrances to any passenger or goods stations of the Central Company no crossing or passing-place siding junction turnout or other work shall be made for or in connexion therewith for the distance thereon extending in front of the said entrances to such stations and for a length of ten yards at each end of such distance without the consent of the Central Company and without such consent no carriage used on the tramways shall be stopped or permitted to be stopped within such distance and lengths except only for so long as shall be reasonably necessary for the purposes of discharging and taking up passengers :

(13) If any difference shall arise between the Corporation and the Central Company as to the reasonableness of the requirements of the Central Company or their engineer or as to the execution of any works provided for by this section or as to any other matter arising under this section the same shall be settled by arbitration by an engineer to be appointed by the Corporation and the Central Company or if they cannot agree then by an engineer to be appointed by the Board of Trade.

Supply of
electricity
for purposes
of Act.

24. The Corporation may for the purposes of this Act supply and use electrical energy from the electricity undertaking for the time being in use by them for supplying electricity.

Incorporation of provisions from certain Corporation Acts.

25. Subject to the provisions of this Act the following sections of the Act of 1897 the Act of 1899 the Act of 1900 the Act of 1901 and the Act of 1902 shall so far as the same are not inconsistent with the provisions of this Act extend and apply

mutatis mutandis to and in relation to the tramways by this Act A.D. 1904.
 authorised and any tramways tramroads or light railways purchased
 or taken on lease under the powers of this Act : —

The Act of 1897.

- Section 22 Provisions as to motive power.
- Section 24 Special provisions as to use of electric power.
- Section 27 Byelaws.
- Section 28 Recovery of penalties.
- Section 29 Amendment of the Tramways Act 1870 as to
 byelaws by local authority.
- Section 30 Regulations.
- Section 31 Orders &c. of the Board of Trade.

The Act of 1899.

- Section 22 Power to carry animals goods &c. on tramways.
- Section 23 Rates for passengers.
- Section 24 Incorporation of provisions as to tolls (including
 the provisions incorporated by that section).
- Section 25 Payment of rates.
- Section 26 New rates to apply notwithstanding any Act
 or Order.

The Act of 1900.

- Section 6 Corporation may reduce width of footway for
 constructing tramway.
- Section 13 Inspection by Board of Trade.
- Section 14 Tramways to be kept on level of surface of
 road.
- Section 15 Plan of proposed mode of construction.
- Section 16 Rails of tramways.
- Section 17 Penalty for not maintaining rails and roads.
- Section 18 Local authority to have access to sewers.
- Section 19 Passing-places to be made at narrow places.
- Section 20 Additional crossings.
- Section 21 Junctions with tramways which can be worked
 in connexion with the tramways of the
 Corporation.
- Section 22 Power to lay down double or interlacing lines
 in place of single lines and vice versâ.

A.D. 1904.

Section 23 Temporary tramways may be made where necessary.

Section 25 Application of road materials excavated in construction of works.

Section 30 Construction of electric works.

Section 31 Attachment of brackets to buildings.

Section 32 Power to Corporation to work tramways.

Section 33 Power as to supply of electric energy.

Section 46 Incorporation of certain sections of Tramways Act 1870 (including the provisions incorporated by that section).

The Act of 1901.

Section 14 Cheap fares for labouring classes.

The Act of 1902.

Section 12 For protection of Postmaster-General.

Amendment of section 22 of Act of 1900.

26. Section 22 (Power to lay down double or interlacing lines in place of single lines and vice versá) of the Act of 1900 shall apply not only in respect of tramways laid down or authorised to be laid down by the Corporation but also to tramways laid down or authorised to be laid down by a local authority and which are leased to or agreed to be leased to the Corporation provided that such last-mentioned powers shall not be exercised except with the consent of the local authority.

Tramways to form part of tramway undertaking of Corporation.

27. The tramways authorised by this Act and belonging to the Corporation shall form part of the tramway undertaking of the Corporation who are hereby empowered to exercise in reference thereto all and singular the powers already possessed by them with reference to their existing tramways or tramway undertaking.

Confirming agreement.

28. The agreement set out in the Third Schedule to this Act is hereby confirmed and made binding upon the parties thereto respectively and the same shall and may be carried into effect by the respective parties.

As to lease of Altrincham tramways.

29. Whereas the Board of Trade have made a Provisional Order authorising the urban district council of Altrincham (in this section referred to as "the Altrincham Council") to construct certain tramways within the urban district of Altrincham (in this section referred to as "the Altrincham tramways") and there is

now pending in Parliament a Bill to confirm the said Provisional Order. Now therefore if the said Provisional Order be confirmed in the present session of Parliament the Altrincham Council shall grant to the Corporation and the Corporation shall take a lease of the Altrincham tramways for the term of twenty-three years from the date on which the Corporation shall be let into possession of the Altrincham tramways after the same shall be certified by the Board of Trade as fit for public traffic and such lease shall be upon such terms and conditions as have been or may be agreed upon between the Altrincham Council and the Corporation and approved by the Board of Trade.

A.D. 1901.

30. The Corporation may enter into and carry into effect contracts and agreements with the owner or lessee of any city tramways or of any outside tramways which can be worked with any corporation tramways and the local authority of any district in which such outside tramways are situate or with any of such parties with respect to the working use management and maintenance by the contracting parties of all or any of their respective tramways and works or any part or parts thereof respectively the making of all necessary junctions the supply under any agreement for all or any of the respective tramways of the contracting parties being worked by the other of them as aforesaid of rolling stock plant machinery and electrical energy or power necessary for the purposes of such agreement the appointment and removal of officers and servants the payments to be made and the conditions to be performed in respect of such working use management and maintenance the interchange accommodation conveyance transmission and delivery of traffic coming from or destined for the respective undertakings of the contracting parties and the division and apportionment of the revenue arising from such traffic and the payment of any fixed or contingent rent. In this section the expression "tramways" shall include a tramroad or light railway or any tramway upon which the Corporation can run carriages and the expressions "city tramways" and "outside tramways" shall have the same meanings respectively as those assigned to them by the Act of 1900.

Agreements
for working
&c.

31.—(1) The period limited by section 9 of the Withington Urban District Council Act 1900 for the completion of the tramways authorised by that Act is hereby extended to the expiration of three years from the passing of this Act and that section shall be read and have effect accordingly.

Extension of
time for con-
struction of
Withington
tramways.

A.D. 1904.

(2) And the period limited for the construction of the tramways authorised by the Withington District Tramways Order 1897 (confirmed by the Tramways Orders Confirmation (No. 1) Act 1897) is hereby extended to the expiration of three years from the passing of this Act and on the expiration of that period the powers granted by the said Order for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Power to
make street
widening
and improve-
ments &c.

32. Subject to the provisions of this Act the Corporation may in the lines and according to the levels shown upon the deposited plans and sections relating thereto make and maintain the new street works herein-after described with all necessary and proper junctions connexions approaches sewers drains and conveniences in connexion therewith The street works herein-before referred to and authorised by this Act are—

IN THE CITY.

A rounding off of the corner of Church Lane and Upper Conran Street in the township of North Manchester for a distance of 5 yards on each side thereof.

IN THE URBAN DISTRICT OF WITHINGTON.

MANCHESTER ROAD—A widening and improvement of Manchester Road on the westerly and easterly sides thereof :

BARLOW MOOR ROAD—A widening and improvement of Barlow Moor Road on the easterly westerly and south-westerly sides thereof :

PALATINE ROAD—A widening and improvement of Palatine Road on the north-westerly and south-westerly sides thereof :

WILMSLOW ROAD—A widening and improvement of Wilmslow Road on the westerly easterly and north-westerly sides thereof.

IN THE URBAN DISTRICT OF SALE.

NORTHENDEN ROAD—A widening and improvement of Northenden Road on the south-westerly and north-casterly sides thereof.

33. In the construction of the street works authorised by this Act the Corporation may deviate vertically from the levels shown on the deposited sections to any extent not exceeding two feet upwards or downwards and they may deviate laterally within the limits of deviation shown on the deposited plans.

A.D. 1904.
 Deviation.

34. Subject to the provisions of this Act and within the limits in each case defined on the deposited plans the Corporation in connexion with the street works authorised by this Act and for the purposes thereof may make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to the street works or any of them and may make diversions widenings or alterations of lines or levels of any existing streets for the purpose of connecting the same with the street works or any of them or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer or channel within the said limits the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer and making compensation for any damage done by them in the execution of the powers of this section.

Power to
 make sub-
 diary works.

35. The Corporation may during the execution and for the purposes of any work by this Act authorised stop up any street and prevent all persons other than those bonâ fide going to or returning from any house buildings or lands in the street from passing along and using the same for any reasonable time but convenient access to the houses buildings or lands in such street shall be provided by the Corporation.

Temporary
 stoppage of
 streets.

36. The street works by this Act authorised so far as the same affect any public street shall when the same respectively have been completed be vested in and maintained in repair as public highways (subject to the provisions of section 28 of the Tramways Act 1870) by and at the expense of the authority or person by whom or at whose expense the adjacent streets or portions of streets are repairable.

As to repair
 of street
 works.

37.—(1) The Corporation may lay down maintain and use for the purpose of the transmission by them of electrical energy and may also repair remove and alter the electricity main or mains herein-after mentioned along the streets shown on the deposited plans and within the boundaries of those streets with all necessary

Power to lay
 down elec-
 tricity mains.

A.D. 1904. or proper wires pipes tubes casings troughs inspection boxes and
— apparatus namely:—

(A) A main or mains commencing in the township of Chorlton-cum-Hardy at the transforming station of the Corporation and passing along Edge Lane in a westerly direction to its junction with the Chester Road and thence in a southerly direction along the Chester Road and terminating therein at the county and parish boundary:

(B) A main or mains commencing in the township of Stretford at or near the junction of King Street and Chester Road and passing thence along King Street and Urmston Lane to the boundary between the urban districts of Stretford and Urmston.

(2) The Corporation may for the purpose of laying down maintaining using repairing renewing and altering such main or mains and of examining testing regulating measuring directing and controlling the transmission of electricity through the same and examining and testing the state thereof exercise in the streets along which such main or mains are to be laid all the powers of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and such provisions shall so far as applicable and except where inconsistent with the provisions of this Act be incorporated with this Act and shall apply accordingly Provided that for the purposes of this section such provisions shall be construed as if "gas" meant electricity "pipe" meant electric main and the "limits of the special Act" meant the boundaries of the streets along which the main or mains are authorised to be laid.

(3) The provisions of sections 13 to 17 and sections 22 and 23 of the Electric Lighting Act 1882 and of sections 10 to 20 and 77 of the schedule to the Electric Lighting (Clauses) Act 1899 are hereby incorporated with this Act and shall apply to and in the case of the exercise by the Corporation of the powers by this Act conferred upon them in relation to streets and roads so far as they are applicable.

(4) All the provisions contained in the Electric Lighting Act 1882 and in the schedule to the Electric Lighting (Clauses) Act 1899 for the protection of the Postmaster-General and his telegraphic lines shall be deemed to be incorporated with this Act

and shall apply to the exercise by the Corporation of the powers A.D. 1904.
 by this section conferred upon them.

38. For the protection of the Manchester South Junction and Altrincham Railway Company (in this section called "the company") the following provisions shall unless otherwise agreed between the Corporation and the company apply to and be binding upon the Corporation in the execution of the works authorised by the section of this Act whereof the marginal note is "Power to lay down electricity mains" :—

For pro-
 tection of
 Manchester
 South Junc-
 tion and
 Altrincham
 Railway
 Company.

- (1) Where the electricity main (A) by this Act authorised will be laid down on the bridge carrying Edge Lane over the railway of the company in the urban district of Stretford the Corporation shall give to the company one month's notice in writing of their intention to lay down the said main and shall submit to the company plans and sections showing the manner in which it is proposed to lay down the said main so far as the same will be laid down on the said bridge and the approaches thereof and the Corporation shall conform to all the reasonable requirements of the company as to the manner in which the said main shall be laid down on the said bridge and the approaches thereof:
- (2) The Corporation shall not construct any manhole pit or similar works upon the said bridge without the previous consent in writing of the company :
- (3) The Corporation shall before commencing to lay down the said main by this Act authorised to be laid down where it shall be within ten yards of any electric telegraphic or telephonic signalling apparatus of the company give to the company seven days notice of their intention so to do which notice shall specify the course nature and gauge of the said main and the amount and nature of the currents intended to be sent along the same (and the extent and manner in which earth returns (if any) may be used) and the Corporation shall conform to such reasonable requirements as may be made by the company for preventing injury to such signalling apparatus or interference with the working thereof The provisions of this subsection shall apply to any alteration in the amount or pressure of the current to be sent along the said main :

A.D. 1904.

- (4) Any additional expense to which the company may be put in repairing altering or reconstructing the said bridge or any of the existing works of the company by reason of the laying down of the said main shall be repaid by the Corporation to the company and if for the purpose of repairing altering or reconstructing the said bridge or any of their existing works the company require to divert or alter the level or otherwise interfere with the said main either temporarily or permanently the Corporation shall at their own expense if so requested by the company execute such diversion or alteration:
- (5) If any loss or damage be caused to the company by reason of the use of the said main the Corporation shall make good the same:
- (6) If any difference shall arise between the Corporation and the company as to the reasonableness of the requirements of the company or their engineer or as to the execution of any works provided for by this section or as to any other matter arising under this section the same shall be settled by arbitration by an engineer to be appointed by the Corporation and the company or if they cannot agree then by an engineer to be appointed by the Board of Trade.

For protec-
tion of Stret-
ford Urban
District
Council.

39. Nothing in this Act contained shall enable the Corporation to supply electricity in bulk or otherwise within the urban district of Stretford except by arrangement with the Stretford District Council And nothing in this Act contained shall enable the Corporation to supply electricity in bulk or otherwise within the urban district of Urmston and the rural district of Barton-upon-Irwell except by arrangement with the Stretford District Council but in the event of the Stretford District Council declining to supply electricity for the working of the Corporation tramways in the district of Urmston and the rural district of Barton-upon-Irwell within nine months after being requested by the Corporation so to do upon terms similar to those contained in an existing agreement between the Corporation and the Stretford District Council for the supply by the Stretford District Council for tramway purposes the Corporation shall be at liberty to supply energy for that purpose:

Provided that if the Stretford District Council shall elect to supply the said districts of Urmston and Barton-upon-Irwell but shall desire within the period of ten years from the passing of this Act to discontinue such supply they shall be at liberty to do so on giving to the Corporation not less than one year's notice of such their desire and on the expiration of such notice the Corporation shall be at liberty to supply electricity in those districts. A.D. 1904.
—

Subject as aforesaid the provisions of this section shall continue in force only during the continuance of the lease to the Corporation of the tramways within the said districts authorised by the Manchester Southern Tramways Act 1903.

40.—(1) If the local authority for any district within which the Corporation are for the time being under statutory powers owners or lessees or authorised to become owners or lessees of tramways or entitled to use or work tramways by means of electric traction (such local authority being authorised by statute to supply electrical energy within their district) or if a company are or shall be authorised to supply electrical energy in any such district the Corporation and any such local authority or company may with the approval of the Board of Trade enter into and carry into effect agreements for the supply of electrical energy in bulk by the Corporation to such local authority or company. Supply of
electricity
beyond city.

(2) For the purpose of giving effect to the foregoing provisions of this section and also for the purpose of enabling the Corporation to transmit electrical energy for working tramways outside the city the Corporation may with the consent (which consent shall not be unreasonably withheld) of the local authority of any intermediate urban or rural district through which it may be necessary or expedient to pass for all or any of the purposes of this section place and maintain in any street in that district such works (either underground or with the consent of the local authority above ground) as may be reasonably necessary for the purposes aforesaid or any of them.

(3) As regards any portion of a street or bridge not being under the control of the local authority through whose district the aforesaid works may pass the consent of the road authority within the meaning of the Tramways Act 1870 shall be requisite but such consent shall not be unreasonably withheld.

(4) If any question arises as to whether the consent of any local or road authority is unreasonably withheld that question shall

A.D. 1904. be determined by an arbitrator to be appointed by the Board of Trade.

(5) Subsections (2) (3) and (4) of the section of this Act the marginal note whereof is "Power to lay down electricity mains" shall extend and apply to and with respect to the works which the Corporation are by this section authorised to place and maintain in any street.

(6) Nothing herein contained shall prejudice or affect the existing statutory provisions whereby the Corporation are authorised to supply electrical energy beyond the limits of the city or any agreement or deed entered into in pursuance thereof.

(7) The provisions of this section and the powers thereby conferred upon the Corporation shall not except with the consent of the Corporation of Salford in writing under their corporate seal apply to or be exerciseable within the county borough of Salford or any area within which the Salford Corporation are for the time being authorised to supply electricity either by agreement with the local authority of such area or in pursuance of any statutory powers conferred upon them.

As to supply
of electricity.

41.—(1) Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 and the Electric Lighting (Clauses) Act 1899 a person shall not be entitled to demand from the Corporation a supply of electrical energy to premises having a separate supply unless such person shall have previously agreed to pay to the Corporation such minimum annual sum as will give to the Corporation a reasonable return on the capital expenditure and other standing charges incurred by the Corporation to meet the possible maximum demand of such person.

(2) In case the Corporation and the person demanding such supply of electrical energy shall fail to agree as to the amount of such minimum annual sum to be paid by such person the amount of such minimum annual sum shall be fixed by an arbitrator to be appointed by the Board of Trade.

(3) The Corporation may by agreement supply electrical energy to any person whose premises are partly within and partly outside the city in the same manner as if such premises were wholly within the city.

Provision as
to construc-
tion and
leasing of
tramways in

42.—(1) The Corporation shall not commence the construction of any of the tramways in the urban district of Sale or rural district of Bucklow until the expiration of six months from the passing of this Act.

(2) If within six months from the passing of this Act the Sale District Council or the Bucklow District Council (each of which is in this section referred to as "the respective council") give notice in writing in pursuance of a resolution passed in manner provided by Part III. of Schedule A of the Tramways Act 1870 to the Corporation of their desire to exercise the powers and assume the obligations conferred or imposed on the Corporation by this Act in relation to the construction maintenance and user of the tramways situate in the district of the respective council and shall also cause a copy of such notice to be published within the like period once in the London Gazette the rights powers authorities and obligations of the Corporation under this Act as to the construction maintenance and user of the said tramways within the respective district and the works connected therewith or incidental thereto shall be transferred to vested in and thenceforward be exercised by the respective council in like manner as if the respective council had been in the first instance authorised by this Act to construct maintain and use the said tramways within the respective district and the works in connexion therewith and this Act shall be construed accordingly save as regards the restriction in subsection (1) of this section which shall not apply to the respective council.

A.D. 1904.

Sale and
Bucklow.

(3) If the respective council elect to be substituted for the Corporation as aforesaid the respective council shall forthwith thereafter commence to construct the said tramways and shall within two years after the passing of this Act complete the same For the purposes of this section the construction of the said tramways shall include the erection and equipment of all works necessary or convenient for or in connexion with the construction and working of the said tramways in under or over the roads within the district The respective council may employ the Corporation or any company or person to execute the works aforesaid provided that if the Corporation are not so employed the Corporation shall be entitled at their own cost to approve all specifications of the work and to supervise the execution thereof.

(4) When the said tramways in the urban district of Sale shall have been completed by the Sale District Council that council may and shall forthwith at the cost of the Corporation cause to be prepared and execute a lease of the tramways works and plant in the urban district of Sale authorised by this Act (exclusive of any lands acquired for the purposes of any widening authorised by this Act) to the Corporation for the term of thirty-five years

A.D 1904. — and at such rents and upon such conditions as have been or may be agreed upon.

(5) When the tramways in the township of Dunham-Massey shall have been completed by the Bucklow District Council that council may and shall forthwith at the cost of the Corporation cause to be prepared and executed a lease of the tramways works and plant in the Bucklow Rural District authorised by this Act upon such terms and conditions as may be agreed upon or failing agreement as may be determined by the Board of Trade provided that the rental shall be such a sum per annum as will pay off the whole of the capital outlay on the tramways within the term of the lease.

Power for
Sale District
Council to
execute
street works.

43.—(1) The Corporation shall not commence the construction of any of the street works authorised by this Act in the urban district of Sale until the expiration of six months after the passing of this Act.

(2) If within six months from the passing of this Act the Sale District Council (in this section referred to as "the council") give notice in writing to the Corporation of their desire to make the street works and purchase the land therefor by this Act authorised the powers of the Corporation under this Act as to the making of the street works and the purchase of land therefor within the urban district of Sale and all powers and obligations connected therewith or incidental thereto shall be transferred to vested in and thenceforward be exercised by the council in like manner as if the council had been in the first instance authorised by this Act to make the street works and purchase the lands within their district and this Act shall be construed accordingly.

Power to
borrow.

44.—(1) The Corporation may subject to the provisions of this Act borrow or raise at interest on the security of the revenue of the tramway undertaking of the Corporation and of the city rate any sums of money not exceeding in the whole the sums following (that is to say) :—

- (A) For or in connexion with the construction of the tramways and street works in the city the sum of thirty-three thousand pounds :
- (B) For and in connexion with the construction of tramways within the urban district of Sale the sum of seven thousand pounds :
- (C) For and in connexion with the construction of street works in the urban district of Sale the sum of three thousand five hundred pounds :

- (D) For and in connexion with the construction of tramways within the township of Dunham-Massey the sum of one thousand five hundred pounds : A.D. 1904.
—
(E) For and in connexion with the construction of street works within the urban district of Withington the sum of eighty-five thousand pounds :
(F) For paying the costs and expenses of this Act as hereinafter provided the sum requisite for that purpose :
(G) For the purposes of this Act or other purposes of the tramway undertaking of the Corporation such further sum or sums as the Board of Trade may from time to time sanction.

(2) The enactments mentioned or referred to in the Second Schedule to this Act to the extent indicated in that schedule shall apply to all moneys to be so borrowed by the Corporation under the authority of this section as if the same had been expressly repeated and re-enacted in this Act with reference to the further sums so authorised to be borrowed.

(3) The Corporation shall repay—

- (A) All moneys borrowed for the purposes (A) (B) and (D) under subsection (1) of this section in any period not exceeding thirty years from the date of the borrowing of the same ;
(B) All moneys borrowed for the purposes (C) and (E) under subsection (1) of this section in any period not exceeding fifty years from the date of the borrowing of the same ;
(C) All moneys borrowed for the purpose (F) under subsection (1) of this section in any period not exceeding five years from the passing of this Act ; and
(D) All moneys borrowed under subsection (1) (G) of this section in such period as the Corporation with the sanction of the Board of Trade may determine :

Which respective periods shall be the prescribed periods for the purposes of section 45 of the Manchester Corporation Act 1891 being one of the enactments applied by this section.

45. As to any addition to the city rate made by the Corporation or under any precept from or at the instance or by the direction of the Corporation for the purposes or any of the purposes of street works mentioned in subsections (A) and (C) and (E) of the section of this Act the marginal note whereof is "Power to borrow" the owner or occupier of any land used only as a railway

Railways and canals to be rated at one-fourth only of net annual value thereof.

A.D. 1904. constructed under the powers of any Act of Parliament for public conveyance or land covered with water or used only as a canal or towing-path for the same shall be assessed in respect of the same in the proportion of one-fourth part only of the net annual value thereof as ascertained by the valuation list for the time being in force or if there be none by the rate for the relief of the poor made next before the making of such assessment. The Local Government Board may from time to time by order make such regulations as seem to the Board necessary or proper respecting the form of the rates notices and accounts to be made used and kept by the overseers of any parish situate wholly or partly in the city with respect to any addition made under the powers of this Act to any city rate and to any assessment in respect thereof and an order under this section shall be deemed to be an order within the meaning of section 98 of the Poor Law Amendment Act 1834.

Borrowing powers for electricity purposes.

46. All expenses properly chargeable to capital account incurred by the Corporation under the sections of this Act the marginal notes of which are "Power to lay down electricity mains" "Supply of electricity beyond city" and "As to supply of electricity" may be paid by the Corporation out of moneys to be borrowed or raised by the Corporation subject and according to the provisions of the Electric Lighting Acts 1882 and 1888.

As to borrowing powers of local authorities.

47. It shall be lawful for the Sale District Council and the Bucklow District Council respectively with the sanction of the Board of Trade to borrow or raise such sum or sums of money as may be necessary or expedient—

(A) For or in connexion with the construction of tramways and street works (including the purchase of land) authorised by this Act within their respective districts if they shall respectively exercise the options conferred upon them by the sections of this Act the marginal notes of which are "Provision as to construction and leasing of tramways in Sale and Bucklow" and "Power for Sale District Council to execute street works":

(B) For or in respect of purposes in connexion with their tramway undertaking inclusive of street widenings costs expenses and liabilities incurred or to be incurred in reference thereto or under the Manchester Southern Tramways Act 1903 and any agreements or proceedings for the purpose of giving effect to the provisions of such Act as regards such local authority.

The provisions of section 20 of the Tramways Act 1870 with necessary modifications shall be applicable to such borrowing
 Provided that the payment to any sinking fund or of any instalment in respect of moneys borrowed under this section need not commence until the expiration of two years from the date of borrowing.

A.D. 1904.
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48. Subsections (8) to (15) of section 91 (Provisions as to tramways in Sale) and section 93 (As to period for repayment of borrowed moneys for street works) of the Manchester Southern Tramways Act 1903 are incorporated with this Act and shall apply as if the same were with the necessary modifications re-enacted in this Act. Provided that the said subsection (8) shall be read as if the lease there referred to were a lease granted by the Sale District Council under the section of this Act the marginal note whereof is "Provision as to construction and leasing of tramways in Sale and Bucklow."

Incorporation of provisions of Manchester Southern Tramways Act 1903.

49. The powers conferred on the Corporation for or in connexion with the construction of the street works in the urban district of Withington the purchase of land therefor and the borrowing powers in respect thereof shall be exerciseable by the Corporation in the event only of the recited Bill passing into law and the urban district of Withington being added to the city.

As to exercise of powers in Withington.

50. Notwithstanding anything contained in the Tramways Act 1870 it shall be lawful for the lease of any local authority including in that expression the Bucklow District Council to the Corporation of any tramway outside the city to be made for a term exceeding twenty-one years (but not exceeding forty-two years) and such lease may confer upon the Corporation such powers in relation to the maintenance and use of the tramways and their electrical equipment and the supply of electricity for the purposes of working lines beyond the district of such authority as the Board of Trade with the consent of such local authority may approve. The rent to be reserved by any such lease may include such items in respect of interest on money borrowed by the local authority and of sinking fund payable in respect thereof or any other items which have been already or may hereafter be agreed upon between the lessors and lessees.

Leases may be granted for more than twenty-one years.

The provisions of section 19 of the Tramways Act 1870 with the necessary modifications shall be applicable to any such lease.

- A.D. 1904.
Agreements
as to repair
of streets.
51. The Corporation and any road authority may enter into and carry into effect agreements for or in relation to the repair by the contracting parties or either of them of the streets or any part thereof in which for the time being any tramways belonging to or in lease to the Corporation may be laid.
- Authentica-
tion of
notices.
52. Any summons demand notice order or document (other than a conveyance contract or security) to be given made delivered or served by or on the part of the Corporation under this Act shall if signed by the town clerk be of the same effect as if sealed by the Corporation and the provisions of section 51 of the Manchester Corporation Waterworks and Improvement Act 1867 shall apply to every such summons demand notice order or other document.
- Provision as
to general
Tramway
Acts.
53. Nothing in this Act contained shall exempt the Corporation or their tramway undertaking from the provisions of any general Act relating to tramways passed before or after the passing of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares or charges authorised by this Act.
- Costs of Act.
54. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of moneys borrowed under the authority of this Act.

The SCHEDULES referred to in the foregoing Act. A.D. 1904.

THE FIRST SCHEDULE.

PROPERTIES OF WHICH PORTIONS ONLY ARE REQUIRED.

Area.	Numbers on deposited Plans.
CITY OF MANCHESTER— Couran Street Improvement -	39
URBAN DISTRICT OF WITHINGTON— Manchester Road Improvement -	2 3 9 12 13 14 14a 14b 14c 18
Barlow Moor Road Improvement -	20 21 22 23 24 25 27 28 30 31 33 35 36 37 38 39 40 42 43 44 46 47 49 50 51 52 53 54 55 56 57 58 59 60 61 62 63 64 65 66 67 68 69 70 71
Palatine Road Improvement -	72 73 74 75 76 77 78 79 80 81 82 83 84 85 86 87 88 89 91 92 93 94 95 96 97 98 99 108
Wilmslow Road Improvement -	109 110 111 112 113 114 115 116 117 118 119 121 122 123 124 125 126 127 128 129 130 131 132 133 134 135 136 137 138 139 140 141 142 143 144 145 146 147 148 149 152 153 154
URBAN DISTRICT OF SALE— Northenden Road Improvement -	2 3 4 5 7 8 9 10 11 12 14 15 16 17 18 19 20 20a 21 23 24 25 26 28 30 31 32 33 34 35 36 37

A.D. 1904.

THE SECOND SCHEDULE.

LOCAL ENACTMENTS MADE APPLICABLE TO THE BORROWING POWERS OF
THE FOREGOING ACT.

Act.	Extent of Application.
7 & 8 Vict. c. xl. An Act for the good Government and Police Regulation of the Borough of Manchester.	Section 16 (except the part thereof beginning "and in the event" and ending "at any one time" and except so much thereof as would enable the Corporation to borrow on the security of any property vested in or belonging to them or which may be acquired by them) and sections 17 18 and 23 to 27 and section 30 (as such sections or any of them are amended by Article VII. of the Manchester Order confirmed by 48 & 49 Vict. c. cvii. by Article VI. of the Manchester Order confirmed by 50 Vict. c. xvii. and by Article I. of the Manchester Order (3) confirmed by 56 & 57 Vict. c. cxxx.).
35 & 36 Vict. c. xxxi. The Manchester Corporation Waterworks and Improvement Act 1872.	Sections 34 35 and 37 to 49 (as amended by Article VII. of the Manchester Order confirmed by 48 & 49 Vict. c. cvii. by Articles III. IV. V. and IX. of the Manchester Order confirmed by 50 Vict. c. xvii. by the Manchester Corporation Act 1891 and by Article I. of the Manchester Order (3) confirmed by 56 & 57 Vict. c. cxxx.).
38 & 39 Vict. c. clxi. The Manchester Corporation Waterworks and Improvement Act 1875.	Sections 62 and 63 (as amended by Articles VII. and VIII. of the Manchester Order confirmed by 50 Vict. c. xvii.).
48 & 49 Vict. c. cvii. The Local Government Board's Provisional Orders Confirmation (No. 7) Act 1885.	Article VII. of the Manchester Order (as amended by Article I. of the Manchester Order (3) confirmed by 56 & 57 Vict. c. cxxx.).
50 Vict. c. xvii. The Local Government Board's Provisional Orders Confirmation (No. 11) Act 1886.	Articles III. to IX. of the Manchester Order.
54 & 55 Vict. c. ccvii. The Manchester Corporation Act 1891.	Sections 2 44 45 (except subsection (1) for which subsection (3) of the section of this Act with the marginal note "Power to borrow" is for the purpose of that section to be deemed substituted) and 47 to 54.
56 & 57 Vict. c. cxxx. The Local Government Board's Provisional Orders Confirmation (No. 12) Act 1893.	Article I. of the Manchester Order (3).
1 Edw. 7 c. exciii. The Manchester Corporation Act 1901.	Section 44 as amended by section 86 of 3 Edw. 7 c. ccxiii.
3 Edw. 7 c. ccxiii. The Manchester Corporation Act 1903.	Section 86.

THE THIRD SCHEDULE.

A.D. 1904.

AGREEMENT made the 18th day of February 1904 between the LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF MANCHESTER (herein-after called "the Manchester Corporation") of the one part and the MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF ASHTON-UNDER-LYNE in the county of Lancaster (herein-after called "the Ashton Corporation") of the other part.

WHEREAS the Manchester Corporation as the owners thereof have constructed and electrically equipped or are authorised to construct and electrically equip the tramways described in the First Schedule hereto (herein-after called "the Manchester tramways"):

And whereas by an agreement dated the 18th day of November 1898 and made between the urban district council of Audenshaw in the county of Lancaster (herein-after called "the Audenshaw Council") of the one part and the Manchester Corporation of the other part and scheduled to and confirmed by the Manchester Corporation Tramways Act 1899 (herein-after called "the Audenshaw agreement") the Audenshaw Council as the owners thereof have agreed to lease to the Manchester Corporation for a term of twenty-one years the tramways described in the Second Schedule hereto (herein-after called "the Audenshaw tramways"):

And whereas by an agreement dated the 24th day of November 1898 and made between the urban district council of Droylsden in the county of Lancaster (herein-after called "the Droylsden Council") of the one part and the Manchester Corporation of the other part and scheduled to and confirmed by the Manchester Corporation Tramways Act 1899 (herein-after called "the Droylsden agreement") the Droylsden Council as the owners thereof have agreed to lease to the Manchester Corporation for a term of twenty-one years the tramways described in the Third Schedule hereto (herein-after called "the Droylsden tramways"):

And whereas the Ashton Corporation as the owners thereof have constructed and electrically equipped or are authorised to construct and electrically equip the tramways described in the Fourth Schedule hereto (herein-after called "the Ashton tramways"):

And whereas subject to the provisions in that behalf contained in the Manchester Corporation Tramways Act 1899 the Manchester Corporation and the Ashton Corporation are authorised to make working agreements as regards their respective tramways and in pursuance thereof have agreed to enter into the agreements in relation to the Manchester tramways and the Ashton tramways herein-after contained:

And whereas the Manchester Corporation and the Ashton Corporation have also agreed to enter into the arrangements herein-after contained in

A.D. 1904. relation to the Audenshaw tramways and the Droylsden tramways and
it is intended that this agreement shall be conditional on its confirmation
by Parliament:

Now therefore it is hereby agreed by the Manchester Corporation and
the Ashton Corporation that the following provisions and stipulations
shall at all times during the continuance of this agreement be observed
and performed by the Manchester Corporation and the Ashton Corporation
respectively (that is to say):—

1. The Manchester Corporation shall forthwith construct or reconstruct
as the case may be and electrically equip the Manchester tramways the
Audenshaw tramways and the Droylsden tramways and thereafter efficiently
keep in repair and maintain the Manchester tramways and the equipment
thereof and also subject to the provisions of the Audenshaw agreement and
the Droylsden agreement shall cause the Audenshaw tramways and the
Droylsden tramways after their respective reconstruction together with
the equipment thereof to be efficiently kept in repair and maintained.

2. The Ashton Corporation shall forthwith construct or reconstruct as
the case may be and electrically equip the Ashton tramways and thereafter
efficiently keep in repair and maintain the Ashton tramways and the
equipment thereof.

3. The Manchester Corporation hereby grant to the Ashton Corporation
the right of user for all purposes of traffic and of demanding and taking tolls
and charges therefor of the Manchester tramways the Audenshaw tramways
and the Droylsden tramways subject nevertheless and reserving to the
Manchester Corporation the right of user for all purposes of traffic and
of demanding and taking tolls and charges therefor of the Manchester
tramways the Audenshaw tramways and the Droylsden tramways To hold
the said rights hereby granted unto the Ashton Corporation for the terms
and subject to the payments and to the provisions and stipulations herein-
after contained.

4. As consideration for the user aforesaid by the Ashton Corporation
of the Manchester tramways the Audenshaw tramways and the Droylsden
tramways respectively the Ashton Corporation shall pay to the Manchester
Corporation the net profits which shall be earned by the Ashton Corporation
by or in respect of their traffic upon or user of the Manchester tramways
the Audenshaw tramways and the Droylsden tramways.

5. The Ashton Corporation hereby grant to the Manchester Corporation
the right of user for all purposes of traffic and of demanding and taking
tolls and charges therefor of the Ashton tramways subject nevertheless
and reserving to the Ashton Corporation the like right of user for all
purposes of traffic and of demanding and taking tolls and charges therefor
of the Ashton tramways To hold the said rights hereby granted unto the

A.D. 1904.

6. The Manchester Corporation shall pay to the Ashton Corporation as consideration for the user aforesaid by the Manchester Corporation of the Ashton tramways the net profits which shall be earned by the Manchester Corporation by or in respect of their traffic upon or user of the Ashton tramways.

7. The net profits mentioned in clauses 4 and 6 of this agreement shall be from time to time agreed between the two managers or in default of agreement shall be from time to time determined by arbitration.

8. The payments herein-before provided to be made by the Ashton Corporation and the Manchester Corporation respectively to the other of them as consideration for the right of user aforesaid exercised by them shall be exclusive of the cost of electrical energy required for the moving and lighting of cars run by either of the said Corporations pursuant to the said right of user as herein-before provided and in respect to the supply of electrical energy required for the purposes aforesaid the following provisions shall obtain (that is to say) :—

(A) The Ashton Corporation shall at their own cost at all times afford a proper and sufficient supply of electrical energy for efficiently moving and lighting all cars belonging to and run by the Manchester Corporation over the Ashton tramways under the provisions of this agreement :

(B) The Manchester Corporation shall at their own cost at all times afford a proper and sufficient supply of electrical energy for efficiently moving and lighting all cars belonging to and run by the Ashton Corporation over the Audenshaw tramways the Droylsden tramways and the Manchester tramways under the provisions of this agreement.

9. All payments provided to be made in clauses 4 and 6 of this agreement shall be made quarterly on the 25th day of March the 24th day of June the 29th day of September and the 24th day of December in every year.

10. The Ashton Corporation as respects the Manchester tramways the Audenshaw tramways and the Droylsden tramways and the Manchester Corporation as respects the Ashton tramways shall at all times observe and comply with all enactments byelaws and regulations for the time being in force in relation thereto and which ought to be observed and complied with in the exercise upon such tramways respectively of the respective rights of user hereby granted and shall from time to time concur in the making of all necessary regulations for preventing nuisances or offences in or upon the tramcars or tramways and for regulating the traffic thereon and shall

A.D. 1904. each of them take all necessary steps to enforce the due observance of such regulations.

11. The rights hereby granted shall not be assigned or parted with either by the Manchester Corporation or the Ashton Corporation without the consent in writing of the other of them.

12. Nothing herein contained shall take away or abridge any power to open and break up any road or street along or across which any tramway is or shall be laid but in the exercise of such power as little inconvenience as possible shall be occasioned to the user of such tramway and whenever necessary substituted or diverted tramways may be provided temporarily and no liability to compensate for stopping or delaying tramway traffic shall at any time arise out of the exercise of the powers aforesaid.

13. The tolls and charges to be demanded and taken by the Manchester Corporation and the Ashton Corporation respectively upon their tramcars running over the same length of the several tramways described in the schedules hereto shall be as far as practicable uniform and such tolls and charges shall from time to time be agreed by the two managers or in the event of difference determined by arbitration.

14. The Ashton Corporation in respect of the Ashton tramways and the Manchester Corporation in respect of the Audenshaw tramways the Droylsden tramways and the Manchester tramways shall at all times during the continuance of this agreement as far as practicable keep the lines of rails free from snow and other accumulation and obstruction.

15. In exercise of the respective rights of user hereby granted neither the Ashton Corporation nor the Manchester Corporation shall be under any obligation or restriction as to the numbers of cars to be run by them respectively over the tramways in respect of which the said rights of user are exercised but each of the said Corporations shall afford all proper and reasonable facilities for receiving and forwarding the traffic of the other of them over the said respective tramways and if any difference shall arise as to the reasonableness of the said facilities such difference shall be settled by arbitration and the arbitrator shall have due regard to the number of cars requisite to be run by either Corporation over their respective tramways in order to efficiently provide for the requirements of the local traffic upon the said respective tramways. Provided nevertheless that the Manchester Corporation shall not without the consent of the Ashton Corporation run a more frequent service of cars upon the Ashton tramways than one car every ten minutes from the Old Square and borough boundary at Audenshaw respectively.

16. The Manchester Corporation in respect of the Ashton tramways and the Ashton Corporation in respect of the Audenshaw tramways the Droylsden tramways and the Manchester tramways shall not run cars on the said tramways except such as the construction and size whereof shall

have been reasonably approved by the Ashton Corporation or the Manchester Corporation respectively and subject to the same approval shall keep such cars in a proper state of repair and efficiently lighted and ventilated and shall whenever required discontinue from use on the said tramways all cars which do not comply with the approval aforesaid and any difference which shall arise in respect of such reasonable approval shall be determined by arbitration. A.D. 1904.

17. The Manchester Corporation shall indemnify the Ashton Corporation against all damage arising out of the wilful and negligent acts of any of the agents and servants of the Manchester Corporation in or about the exercise by them of the right of user of the Ashton tramways under the provisions of this agreement.

18. The Ashton Corporation shall indemnify the Manchester Corporation against all damage arising out of the wilful and negligent acts of any of the agents and servants of the Ashton Corporation in or about the exercise by them of the right of user of the Audenshaw tramways the Droylsden tramways and the Manchester tramways under the provisions of this agreement.

19. In this agreement the expression "the two managers" means the general manager for the time being of the Manchester Corporation tramways and the manager for the time being of the Ashton Corporation tramways.

20. The Ashton Corporation or the Manchester Corporation if they so desire may by six months' previous notice in writing given to the other of them determine this agreement at the expiration of a period of three years from the date hereof and thereafter by a like previous notice at the expiration of every subsequent period of three years.

21. Any reference to arbitration under this agreement shall be to an arbitrator appointed upon the application in writing of either of the parties by the Board of Trade.

22. This agreement is conditional on its being confirmed by Parliament and on the necessary resolutions and consents being passed and given under the Borough Funds Acts 1872 and 1903 for the promotion by the Manchester Corporation of a Bill in Parliament to confirm this agreement and is also subject to such alteration as Parliament may think fit to make therein but if the Committee on the Bill make any material alteration in such agreement it shall be competent to either party to withdraw the same.

In witness whereof the Manchester Corporation and the Ashton Corporation have hereunto affixed their respective common seals the day and year first before written.

A.D. 1904;

SCHEDULES referred to in the foregoing Agreement.

THE FIRST SCHEDULE.

(Containing a description of the Manchester tramways.)

The tramways in Ashton Old Road commencing at the boundary of the city of Manchester and the urban district of Audenshaw and passing thence in a westerly direction along Ashton Old Road to the junction of such road with Gransmoor Road.

THE SECOND SCHEDULE.

(Containing a description of the Audenshaw tramways.)

(1) The tramways in Ashton Old Road and Manchester Road from the boundary between the city of Manchester and the urban district of Audenshaw to the boundary between the urban district of Audenshaw and the borough of Ashton-under-Lyne.

(2) The tramways in Droylsden Road from the boundary between the urban district of Droylsden and the urban district of Audenshaw to the junction of Droylsden Road with Manchester Road.

THE THIRD SCHEDULE.

(Containing a description of the Droylsden tramways.)

The tramways in Manchester Road from the boundary between the urban district of Droylsden and the urban district of Audenshaw to the junction of Manchester Road with Market Street (Droylsden).

THE FOURTH SCHEDULE.

A.D. 1904.

(Containing a description of the Ashton tramways.)

The tramways in Manchester Road commencing at the boundary between the urban district of Audenshaw and the borough of Ashton-under-Lyne and passing thence in an easterly direction along Manchester Road into and along Old Street Warrington Street Bow Street George Street into Stamford Street thence in a westerly direction along Stamford Street to Manchester Road.

The common seal of the Corporation of the city of Manchester was hereunto affixed in pursuance of an order of the council of the said city in the presence of

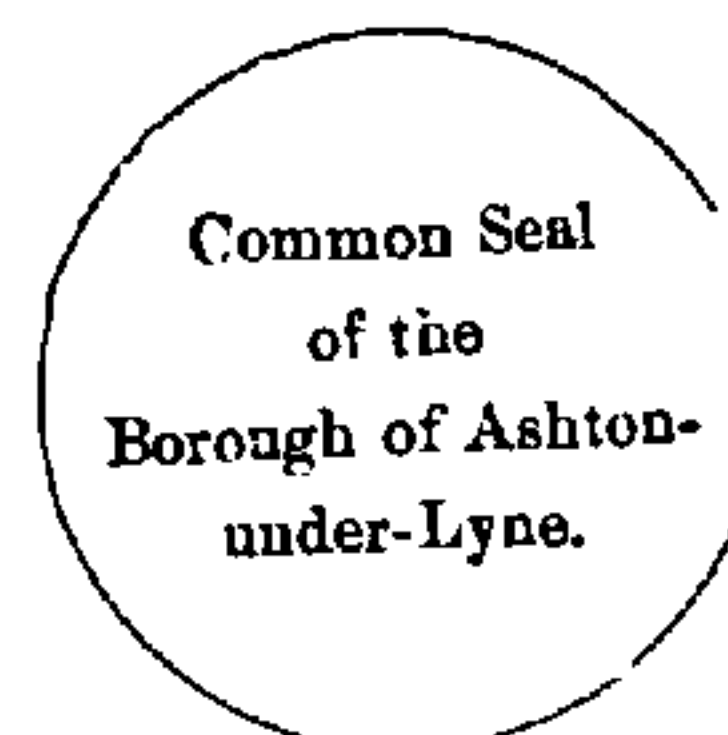
T. T. SHANN Lord Mayor
WM. HENRY TALBOT Town Clerk



48805

The common seal of the Corporation of the borough of Ashton-under-Lyne was hereunto affixed in pursuance of an order of the council of the said borough in the presence of

ALLEN SHAW Mayor
HAROLD HYDE Deputy Town Clerk



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